

|    |                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|----|------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                              | <p>As such, <b>Motions are GRANTED</b>. Defendant Jie Charlene Yan is ordered to provide verified responses to Special Interrogatories, Request for Production of Documents, and Form Interrogatories (Set 1), without objections, within ____ days of service of the Notice of Ruling.</p> <p><b>The Request for Admissions, Set 1, are deemed <i>admitted</i>.</b></p> <p><b>Sanctions against Defendant Jie Charlene Yan in the amount of \$500 to be paid within 30 days.</b></p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 9. | <p><b>30-2023-01351588</b></p> <p><b>Shulman Roofing, Inc vs. Nguyen</b></p> | <p><b>1. Motion for Summary Judgment and/or Adjudication</b></p> <p>Plaintiff and Cross Defendant Shulman Roofing, Inc. (“SRI”) and Cross-Defendant Joe Shulman (“Shulman”) move for summary adjudication pursuant to CCP§ 437c as to certain causes of action set forth in Defendant and Cross-Complainant’s (“Nguyen”) Fourth Amended [Cross] Complaint.</p> <p>Defendant and Cross-Complainant, TUYET-HOC NGUYEN’s Opposition was untimely served and filed. Pursuant to CCP§437c(b)(2), “All opposition papers must be <i>served</i> on the moving party <i>and filed</i> with the court at least <i>20 days</i> before the date set for hearing on the motion, unless the court shortens the time for good cause shown.”</p> <p>In the Opposition, counsel explains, “Mr. Nguyen’s counsel, Mark D. Holmes, apologizes for this late filing, as Mr. Nguyen’s counsel calendared this Opposition to be filed and served fourteen (14) calendar days prior to the hearing on the Motions – July 2, 2026 in the mistaken belief that the Opposition deadline was fourteen (14) calendar days. (Declaration of Mark D. Holmes in support of Opposition to MSAs (‘Holmes Decl.’) ¶ 5.”</p> <p>As such, the Court finds good cause to <b>CONTINUE this Motion to 9/10/2026</b>.</p> <p>Notably, as to the Opposition, 13 of 15 pages contain footnotes. In total, there are 27 footnotes, which is considerable, and is construed as an attempt to avoid the 20-page limit set forth in CRC, Rule Rule 3.1113(d).</p> <p>Therefore, Nguyen is <b>ordered to re-file the opposition</b>, with minimal footnotes, by <b>8/21/2026</b>.</p> <p>Moving party to file a <b>Reply by 8/30/2026</b>.</p> <p><u>Trial date</u> of 9/8/2026 is <b>CONTINUED to November 2, 2026 at 9:00 am in c34</b>.</p> <p><u>Trial readiness</u> date of 9/3/2026 is <b>continued to 10/22/26</b> at 11:00 am in C34.</p> <p><b>Court to give notice.</b></p> |